

25TRCV00124 25TRCV00124

County: los-angeles

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Hearing

Date: July 15, 2026

Moving Party: Defendant General

Motors LLC

Responding Party: Plaintiff Oscar Alejandro

Larios

Motion to Tax Costs

The Court considered the moving, opposition, and reply papers.

RULING

The motion is GRANTED. The Court strikes \$1947.50 from Item 8 of plaintiff's memorandum of costs.

BACKGROUND

On January

14, 2025, plaintiff Oscar Alejandro Larios filed a complaint against General Motors LLC for violations of Song-Beverly Act as to a 2024 Cadillac CT5.

On March 10, 2026, plaintiff filed notice of settlement.

On May 10, 2026, plaintiff filed a memorandum of costs.

LEGAL

AUTHORITY

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).” Cal. Rules of Court, Rule 3.1700(b)(1).

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. This means that the prevailing party is entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party.” *Nelson v. Anderson* (1999) 72 Cal. App. 4th 111, 128-29 (citations and internal quotations omitted); CCP §1032(b) (“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding”).

CCP

§1033.5(c) states, in relevant part:

“Any award for costs shall be subject to the following:

(1) Costs are allowable if incurred, whether or not paid.

(2)
Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

(3)
Allowable costs shall be reasonable in amount.

(4)
Items not mentioned in this section . . . may be allowed . . . in the Court’s discretion.”

“If the items appearing in a cost bill appear to be proper charges, the burden is

on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs."

Ladas v. California State Automotive Assoc. (1993) 19 Cal. App.

4th 761, 774 (citation omitted). Id. "The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable." Nelson v. Anderson

(1999) 72 Cal. App. 4th 111, 131 (citations omitted). "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." Seever v. Copley Press, Inc. (2006) 141 Cal. App. 4th 1550, 1557.

DISCUSSION

Defendant requests that the Court tax

Item 8 for \$1947.50 in expert-related costs arising from a February 13, 2026 vehicle inspection.

Civil Code §1764(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

As to Item 8, it lists for February

13, 2026, as to vendor Automotive Technology Services, Inc., "case intake, vehicle inspection, travel expenses, expert" for \$1947.50. The invoice reflects \$325 for case intake, \$97.50 for conference call/zoom call with customer, \$850 flat rate for up to 3 hrs., total inspection time 3.3 hrs., \$97.50 vehicle inspection additional time, and \$577.50 for travel time (\$165 x 3.5 hrs.).

Steve Sayegh is named under the various categories.

Defendant argues that plaintiff

cannot establish that the costs were reasonably necessary to the litigation,

reasonable in amount, or adequately supported by competent evidence. Defendant asserts that it had served its second 998 offer to compromise on February 3, 2026, which plaintiff accepted on March 5. Defendant states that it had previously served a 998 offer on November 20, 2025, which plaintiff did not respond to and “instead choosing to continue unnecessarily increase fees costs.” Defendant also argues that the invoice exceeds plaintiff’s own disclosed expert fee schedule and identifies Steve Sayegh in connection with the billed services, but that defendant did not designate Sayegh as a retained expert.

In opposition, plaintiff notes only that the expert witness rate sheet expressly stated that the service rates were effective only in 2024. Plaintiff states that expert witness Randall Bounds’ service rates were later updated for 2026 and the invoice reflects those rates.

In reply, defendant notes that plaintiff does not address the “dispositive issue” as to whether such inspection costs were reasonably necessary after defendant had already served a complete statutory repurchase offer. Further, defendant contends, plaintiff improperly attempts to rely upon a different rate schedule than the one served with its February 12, 2025 expert designation. Defendant also asserts that plaintiff still offers no competent evidence establishing who Sayegh is, his qualifications, what role he played, and his relationship to plaintiff’s designated retained expert, Randall Bounds.

The Court finds that the expert-related costs were not reasonably incurred and are not recoverable. Plaintiff did not designate Steve Sayegh, the person identified on the invoice, as a retained expert. Further, the invoiced rates do not match with the expert rate sheet plaintiff produced. Moreover, it is unclear as to why plaintiff persisted in conducting a vehicle inspection when there was a complete statutory offer.

The motion is GRANTED.

ORDER

The motion is GRANTED. The Court strikes \$1947.50 from Item 8 of

plaintiff's memorandum of costs.

Defendant is ordered to give notice of ruling.